

eral immunity doctrine for suits arising under federal law is self-evident. Further, the rights at stake in a suit brought directly under the Bill of Rights are no less worthy of full protection than the constitutional and statutory rights protected by § 1983." *Mark v. Groff*, 521 F. 2d 1376, 1380 (1975).

Other courts have reached similar conclusions. *E. g.*, *Apton v. Wilson*, 165 U. S. App. D. C. 22, 506 F. 2d 83 (1974); *Brubaker v. King*, 505 F. 2d 534 (CA7 1974); see *Weir v. Muller*, 527 F. 2d 872 (CA5 1976); *Paton v. La Prade*, 524 F. 2d 862 (CA3 1975); *Jones v. United States*, 536 F. 2d 269 (CA8 1976); *G. M. Leasing Corp. v. United States*, 560 F. 2d 1011 (CA10 1977).²⁷

We agree with the perception of these courts that, in the absence of congressional direction to the contrary, there is no basis for according to federal officials a higher degree of immunity from liability when sued for a constitutional infringement as authorized by *Bivens* than is accorded state officials when sued for the identical violation under § 1983. The constitutional injuries made actionable by § 1983 are of no greater magnitude than those for which federal officials may be responsible. The pressures and uncertainties facing decisionmakers in state government are little if at all different from those affecting federal officials.²⁸ We see no sense

²⁷ The First and Sixth Circuits have recently accorded immunity to federal officials sued for common-law torts, without discussion of their views with respect to constitutional claims. *Berberian v. Gibney*, 514 F. 2d 790 (CA1 1975); *Mandel v. Nouse*, 509 F. 2d 1031 (CA6 1975).

²⁸ In *Apton v. Wilson*, 165 U. S. App. D. C. 22, 32, 506 F. 2d 83, 93 (1974), Judge Leventhal compared the Governor of a State with the highest officers of a federal executive department:

"The difference in office is relevant, for immunity depends in part upon 'scope of discretion and responsibilities of the office,' *Scheuer v. Rhodes*, *supra*, 416 U. S., at 247 But the difference is not conclusive in this case. Like the highest executive officer of a state, the head of a Federal executive department has broad discretionary authority. Each is called